

LAW & MOTION CALENDAR
TENTATIVE RULINGS

August 7, 2026

09:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
1	Nguyen vs. Hands on Bicycles, Inc. 2023-01343626	Plaintiff's Motion for Approval of Class Settlement Continued to 10/16/2026 at 9:00 a.m. in Department CX101.
3	Torres vs. The Soundcoat Company, Inc. 2024-01434818	Plaintiff's Motion for Approval of Class Settlement The Court has reviewed the supplemental briefing filed in response to the previous minute order. The motion for preliminary approval of class action settlement is GRANTED. The motion for final approval shall be heard on January 8, 2027 at 9:00 a.m. in Department CX101. Moving papers are due 16 court days before the hearing. Please submit a revised proposed order that conforms to the foregoing, includes the date of the final approval hearing, and updates all dates that are calculated in reference to the date preliminary approval is granted.
4	Gates vs. Herbalife Manufacturing LLC 2022-01289409	Plaintiff's Motion for Final Approval The Court has reviewed the briefing filed in response to the prior minute order. Plaintiffs’ motion for final approval of the parties’ class action settlement is GRANTED. The Court approves the following distributions: 1. Attorney’s fees in the amount of \$234,952, or 30% of

		the GSA (inclusive of <i>Pick Up Stix</i> payments). The Court finds this amount to be a reasonable result in light of the quality of the result obtained, the work performed by class counsel, a review of the billing records provided, and the estimated lodestar. In approving this amount and examining the billing records provided, the Court is not approving any particular hourly billing rates proposed by class counsel. 2. Litigation costs in the amount of \$29,702, the full amount sought. 3. Administration costs in the amount of \$10,000, per the administrator’s declaration. 4. Enhancements of \$5,000 to each named Plaintiff. In making these awards, the Court has considered only the factors set forth in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785. 5. Payment to the LWDA of \$15,000, per the parties’ PAGA allocation. Pursuant to section 384(b) of the Code of Civil Procedure, Plaintiff shall submit to the Court a final report on or before February 26, 2027 setting forth the actual amounts paid to class members and other amounts disbursed pursuant to the settlement. Upon receiving the report, the Court will determine whether further reports and/or a hearing will be necessary.
5	Dodson vs. Leaffilter North, LLC 2023-01309066	Plaintiff's Motion for Final Approval Plaintiff’s motion for final approval of the parties’ class action settlement is GRANTED. The Court approves the following distributions: 1. Attorney’s fees in the amount of \$316,667, or 33.3% of the GSA. The Court finds this amount to be a reasonable result in light of the quality of the result obtained, the work performed by class counsel, and the estimated lodestar. In particular, the Court notes the outstanding recovery for class members, who will receive an average of over \$22,000, with one class member receiving over \$68,000. In approving this amount, the Court is not approving any particular hourly billing rates proposed by class counsel. 2. Litigation costs in the amount of \$20,000, the agreed-upon maximum. 3. Administration costs in the amount of \$2,990, per the administrator’s declaration. 4. An enhancement of \$5,000 to Plaintiff. In making this award, the Court has considered only the factors set

		forth in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785. 5. Payment to the LWDA of \$71,250, per the parties’ PAGA allocation. Pursuant to section 384(b) of the Code of Civil Procedure, Plaintiff shall submit to the Court a final report on or before February 26, 2027 setting forth the actual amounts paid to class members and other amounts disbursed pursuant to the settlement. Upon receiving the report, the Court will determine whether further reports and/or a hearing will be necessary. Additionally, the Court notes that in the minute order of January 9, 2026, it asked counsel to provide contemporaneously made billing records at final approval. Counsel did not do so. Instead, the supporting declaration states the number of hours worked by each attorney and their hourly rates, along with a general description of all work done during the case. For future cases, counsel is advised that the Court expects contemporaneous billing records to be provided.
6	Gantt vs. George Fischer, Inc. 2024-01448959	Plaintiff's Unopposed Motion for Approval Plaintiff’s motion for preliminary approval of class action settlement is CONTINUED to October 9, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before September 29, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all changes, deletions and additions must be submitted as well. Counsel’s declaration filed with the current moving papers is not internally bookmarked as required by CRC 3.1110(f)(4). Please be advised that failure to include internal bookmarks in future filings may result in continuance of the hearing. <i>As to the Settlement:</i> 1. Did counsel interview anyone other than Plaintiff to value the non-record claims? 2. Did counsel review Defendant’s applicable meal and rest break policies? If so, are they facially compliant with applicable law? 3. Does the UCL claim have independent value, or does it simply extend the limitations period? 4. The class and PAGA releases cover not only claims that were pled or could have been pled based on the facts alleged in the complaint and the LWDA letter, but also facts “ascertained in the course of the Action.” Please delete this language. Almost anything could have been “ascertained in the course of the Action.”

		5. At final approval, please submit contemporaneously made billing records for attorney’s fees and costs. The Court will not be inclined to award an amount of fees and costs greater than the amount stated in the notice. 6. At final approval, please submit billing records for administrative costs. The Court will not be inclined to award administrative costs in an amount greater than the amount stated in the notice. 7. Because she has submitted a declaration in support of her requested enhancement at preliminary approval, Plaintiff need not submit one at final approval. 8. At final approval, the administrator is to provide a high, low, and average for individual settlement payments, along with Plaintiff’s individual payout. As to the Notice: 1. Please include workweek dispute and opt-out forms with the notice. 2. At page 3, please delete the descriptions of the mediator as “experienced, neutral” and the settlement agreement as “lengthy.” Because the notice is Court-ordered, these descriptions could suggest the Court’s official endorsement. 3. Does notice need to be given in any languages other than English and Spanish? 4. If any changes are made to the settlement agreement, please make corresponding changes to the notice. 5. The font size in the actual notice may not be smaller than the font size in the proposed notice provided to the Court.
7	Tadera Saavedra vs. Displayit, LLC 2024-01403288	Plaintiff's Motion for Attorney Fees Plaintiff's Motion for Final Approval Plaintiff’s motion for final approval of the parties’ class action settlement is GRANTED. The Court approves the following distributions: 1. Attorney’s fees in the amount of \$255,000, or 30% of the GSA. The Court finds this amount to be a reasonable result in light of the quality of the result obtained, the work performed by class counsel, a review of the billing records provided, and the estimated lodestar. In approving this amount and examining the billing records provided, the Court is not approving any particular hourly billing rates proposed by class counsel.

		2. Litigation costs in the amount of \$10,108, the full amount sought. 3. Administration costs in the amount of \$9,000, per the administrator’s declaration. 4. An enhancement of \$5,000 to Plaintiff. In making this award, the Court has considered only the factors set forth in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785. 5. Payment to the LWDA of \$13,000, per the parties’ PAGA allocation. Pursuant to section 384(b) of the Code of Civil Procedure, Plaintiff shall submit to the Court a final report on or before February 26, 2027 setting forth the actual amounts paid to class members and other amounts disbursed pursuant to the settlement. Upon receiving the report, the Court will determine whether further reports and/or a hearing will be necessary.
8	Rodriguez vs. CVS Pharmacy, Inc. 2026-01576349	Plaintiff's Motion to Seal Plaintiff’s motion to seal the exhibits to his complaint (or portions of those exhibits) is DENIED without prejudice. Plaintiff may refile the motion and the Court will consider sealing portions of his medical records detailing “reproductive health treatment and surgery” provided (1) he supplies the Court with the specific pages of the Complaint’s exhibits for which he seeks sealing, and (2) he provides the proposed redactions on those pages. Notwithstanding any approved sealing, Plaintiff must serve the entire unredacted complaint (including unredacted exhibits) on any defendant he serves in this case. A court may order a record to be filed under seal only if it expressly finds facts establishing: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record; 3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).) Plaintiff moves to seal either (1) all exhibits to his complaint or (2) certain portions thereof. (The moving papers are unclear on this point.) In his supporting declaration, Plaintiff explains that the exhibits refer to his former legal name (which he has since changed) and discuss certain mental and physical health issues. He argues his privacy interests would be seriously prejudiced if the exhibits aren’t sealed.

		In the abstract, the Court would agree. But Plaintiff himself filed the complaint and exhibits, and he did so in the public record rather than seeking to do so under seal. Nothing in the record—including the declaration in support of this motion—states that Plaintiff publicly filed the documents by mistake. The Court recognizes that Plaintiff filed this case in propria persona and may not have realized the effect of publicly filing the exhibits. But a party who proceeds in pro per is held to the same rules as an attorney, and he or she is entitled to no greater consideration than represented litigants. (<i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1247.) Accordingly, the motion is denied.
9	Roe 1 O.B. vs. Anaheim Union High School District 2024-01439626	Plaintiff's Motion to Compel Production Plaintiffs John Roe 1 O.B. et al. move for an order compelling the Orange County District Attorney (“OCDA”) to comply with a deposition subpoena for production of business records served on March 9, 2026. The Court is inclined to GRANT the motion as set forth below. <u>GROUND FOR RULING</u> On March 9, 2026, Plaintiffs served a document subpoena on OCDA, with a return date of April 7. (Gures Decl. (included in ROA 117) Ex. 1.) In effect, the subpoena seeks all documents in OCDA’s possession, custody, or control relating to David Bruce, who allegedly sexually abused Plaintiffs during Bruce’s career as a teacher for the Anaheim Unified School District. On March 26, 2026, OCDA served objections by letter. (Gures Decl. Ex. 2.) It argued Plaintiffs had previously served a nearly identical subpoena, that OCDA had objected to the prior subpoena, and the time to move to compel compliance with the prior subpoena had long since passed. It further argued the failure to move to compel couldn’t be cured by serving a second, identical subpoena. On May 20, 2026, Plaintiffs sent a meet-and-confer letter to OCDA. (Gures Decl. Ex. 3.) No response from OCDA is in the record. CCP § 1987.1 allows a party who serves a subpoena for production of documents to move for an order compelling the witness to comply. A party moving to compel production of documents sought in a deposition notice must “set forth specific facts showing good cause justifying the production.” (CCP § 2025.450(b)(1).) If good cause is shown, then the objecting deponent bears the burden of justifying its objections. (See Weil et al., <i>Cal. Practice Guide: Civil Procedure Before Trial</i> (The Rutter Group 2026) ¶ 8:814.) Plaintiffs have established good cause for production. In the current lawsuit, Plaintiffs seek to hold AUSD liable for its alleged negligent supervision of Bruce. OCDA’s records regarding the investigation of Bruce and his subsequent prosecution likely contain information bearing not only on Bruce’s acts, but also on issues of whether AUSD was on notice of allegations against him, the extent of its supervision of Bruce, institutional responses to allegations against him, etc. The records may also contain witness information that can assist Plaintiffs in developing their case.

		(Gures Decl. ¶ 3.) OCDA has not filed an opposition to Plaintiffs’ motion. Therefore, it has failed to justify the objection raised in its March 26 letter. (Notably, the sole objection raised was to the duplicative nature of the subpoena. OCDA <i>did not</i> raise objections such as the attorney-client privilege, work product doctrine, etc. Any objections not raised in the letter are waived.) Plaintiffs’ motion is accordingly granted. As to the nature of the production, Plaintiffs will accept “redactions of nonparty minor identifying information, including names, dates of birth, contact information, and medical or mental health information, so long as the factual substance of the allegations, investigative findings, witness statements, dates, locations, and Bruce’s conduct remained intact.” (Mot. at p. 11.) By no later than August 24, 2026, OCDA is to produce all documents responsive to the subpoena, redacted as proposed by Plaintiffs.
10	Vazquez vs. GNIMGT, Inc. 2025-01535748	Plaintiff's Motion to Compel Arbitration Defendant GNIMGT, Inc. moves to compel arbitration of the individual portion of Plaintiff Erick Vasquez’s PAGA claim and stay the representative portion pending completion of arbitration. The motion is DENIED. <u>GROUND FOR RULING</u> I. <u>Introduction</u> Plaintiff does not dispute that he signed the arbitration agreement at issue during the onboarding process, nor that it covers all claims at issue here. (See generally Vasquez Decl.) Following the Court’s prior minute order, Defendant submitted a declaration establishing that Artemis Hospitality, defined as “the Company” in the agreement, is a fictitious business name used by Defendant. (See 3rd Gutierrez Decl.) The Court therefore finds that Defendant has proven an agreement to arbitrate exists, that Ex. A to the declaration of Matthew Alfonso Martinez is the agreement, that it is governed by the FAA, and that it covers all claims in this case. II. <u>Unconscionability</u> Plaintiff’s sole argument against enforcing the arbitration agreement is unconscionability. ““The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.’ [Citation.] But they need not be present in the same degree. ‘Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.’” (<i>Armendariz v. Foundation Health Psychcare</i>

	<i>Services, Inc.</i> (2000) 24 Cal.4th 83, 114.) A. <u>Procedural Unconscionability</u> “A procedural unconscionability analysis ‘begins with an inquiry into whether the contract is one of adhesion.’ [Citation.] An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power ‘on a take-it-or-leave-it basis.’ [Citations.] Arbitration contracts imposed as a condition of employment are typically adhesive” (<i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 126.) “[A]lthough adhesion alone generally indicates only a low degree of procedural unconscionability, the potential for overreaching in the employment context warrants close scrutiny of the contract’s terms.” (<i>Ramirez v. Charter Communications, Inc.</i> (2024) 16 Cal.5th 478, 494.) The arbitration agreement in the present case is adhesive. It was offered on Defendant’s pre-printed form. There is no serious dispute that Plaintiff had no opportunity to negotiate the agreement’s terms. Because the agreement is adhesive, “[t]he pertinent question...is whether circumstances of the contract’s formation created such oppression or surprise that closer scrutiny of its overall fairness is required.” (<i>OTO, supra</i>, 8 Cal.5th at p. 126.) “‘The circumstances relevant to establishing oppression include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party’s review of the proposed contract was aided by an attorney.’” (<i>Id.</i>) Plaintiff testifies he was informed that he needed to complete the onboarding documents immediately to secure his employment. (Vasquez Decl. ¶ 3.) However, as Plaintiff admits, while he was sent the onboarding documents in October 2024, his position didn’t actually open until April 2025. Indeed, the agreement itself reflects that while Plaintiff signed it in October 2024, it wasn’t countersigned by Defendant until April 2025. This suggests that Plaintiff was merely required to sign the agreement before his position started several months later, not immediately upon receiving a link to the onboarding website. Plaintiff argues surprise is present because he was required to complete onboarding on his cell phone, which cut off terms of the agreement due to its small screen size compared to a computer. (Vasquez Decl. ¶ 4.) But Plaintiff never says he brought his lack of a computer to Defendant’s attention. Defendant isn’t responsible for Plaintiff’s lack of a personal computer. Plaintiff also argues the circumstances were oppressive because he wasn’t given copies of the agreement in advance and thus couldn’t ask an attorney to review the agreement before he signed it. (<i>Ibid.</i>) However, Plaintiff testifies he completed the
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	agreement (and other onboarding documents) on his cell phone, which is portable. Nothing prevented Plaintiff from taking his cell phone to an attorney’s office and having an attorney review the agreement. In sum, the Court finds procedural unconscionability exists, in that the agreement was adhesive and he was required to complete it before beginning work. However, there is no more procedural unconscionability than in the usual employment setting. B. <u>Substantive Unconscionability</u> 1. <u>Waiver of Administrative Relief</u> The Agreement provides: “The Employee may file a claim with an administrative agency, including the Equal Employment Opportunity Commission, the U.S. Department of Labor, the National Labor Relations Board, or the Office of Federal Contract Compliance Programs, if applicable law permits access to such an agency notwithstanding the existence of an arbitration agreement. The Employee agrees, however, to waive and release any right to receive any individual remedy or to recover any individual monetary or nonmonetary damages because of any administrative charge, complaint or lawsuit filed by anyone on the Employee’s behalf.” (Agreement at pp. 1-2.) Plaintiff contends this is an unconscionable wavier of the right to obtain relief in the administrative process. The Court agrees. In <i>Hasty v. American Automobile Assn.</i> (2023) 98 Cal.App.5th 1041, the appellate court considered a clause that provided “either party may file a charge or complaint with an appropriate governmental administrative agency, however, ‘the parties waive their right to any remedy or relief as a result of such charges or complaints brought by such governmental administrative agencies.’” (<i>Id.</i>, at p. 1060.) The court noted that the Labor Commissioner may investigate employee complaints and, following investigation, award the employee wages owed. The waiver of any relief from such a proceeding would “insulate[] the Association from such awards and precludes the employee from obtaining redress for labor violations that a government agency has determined exist and are well-founded.” (<i>Ibid.</i>) The court concluded, “A waiver of administrative remedies and relief, hidden in an arbitration agreement, is overly harsh and shocks the conscience.” (<i>Ibid.</i>) The same is true here. Suppose another employee of Defendant were to complain to the EEOC about racial discrimination and suppose the EEOC decided to file suit alleging that Defendant discriminated against employees of Plaintiff’s race. Should the EEOC recover anything for the employees discriminated against in that action, Plaintiff would be barred from sharing in that relief. This is unconscionable. 2. <u>Wholesale PAGA Waiver</u> The agreement allows the arbitrator to decide the individual
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	component of a PAGA claim (Agreement at p. 3), but it otherwise provides that “YOU...WAIVE ANY RIGHT...TO BRING ANY...REPRESENTATIVE ACTION.” (Agreement at p. 4.) The Agreement thus purports to wholly waive Plaintiff’s right to pursue the non-individual component of a PAGA claim. Furthermore, the representative action waiver is wholesale as written, suggesting Plaintiff cannot <i>bring</i> an individual PAGA claim, regardless of whether the arbitrator has the power to <i>decide</i> such a claim. In any event, the Agreement clearly purports to waive non-individual PAGA claims. Such a waiver is unconscionable under California law, even after <i>Viking River</i>. How to address this unconscionable waiver (e.g., by staying the non-individual PAGA claim pending arbitration of the individual PAGA claim) is a separate question from whether the waiver is substantively unconscionable. 3. <u>Waiver of Public Injunctive Relief</u> The arbitrator lacks the power “to award any class, collective, or other representative relief on behalf of any person other than you.” (Agreement at p. 3.) Citing <i>Vaughn v. Tesla, Inc.</i> (2023) 87 Cal.App.5th 208, Plaintiff argues this unconscionably waives his ability to seek public injunctive relief. The Court agrees. “[A]n arbitration agreement that precludes a plaintiff from pursuing public injunctive relief in any forum is invalid and unenforceable as a matter of state law.” (<i>Id.</i>, at p. 228.) This rule is not preempted by the FAA. (<i>Id.</i>, at pp. 232-237.) In <i>Vaughn</i>, as here, the agreement “provide[d] for resolution of all covered disputes in arbitration, but prohibit[ed] an arbitrator from granting nonindividual relief.” (<i>Id.</i>, at p. 228.) As a result, the agreement “waive[d] Plaintiffs’ right to seek a public injunction ‘in any forum.’” (<i>Ibid.</i>) The same is true here: the agreement unconscionably waives the right to public injunctive relief. In reply, Defendant points out that Plaintiff doesn’t seek public injunctive relief in this case, and in any event, an injunction requiring an employer to obey the Labor Code with respect to its employees is private in nature. These points are both correct, but are irrelevant to an unconscionability analysis. Unconscionability is determined at the time a contract is made. (Civ. Code § 1670.5(a).) 4. <u>Non-Mutuality of Confidentiality Agreement</u> As part of the onboarding process, Plaintiff signed a confidentiality agreement at the same time as the arbitration agreement. He contends the two agreements must be read together, and the confidentiality agreement has the effect of making the arbitration agreement unconscionably non-mutual. Defendant argues the FAA prevents consideration of the two agreements together. When the FAA applies, “issues that go to the validity of an underlying contract, as opposed to the validity of an arbitration agreement itself, are normally decided by an arbitrator, not the court.” (<i>Alberto v. Cambrian Homecare</i> (2023) 91 Cal.App.5th 482, 494, fn. 4.) In <i>Alberto</i>, the court decided the
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	unconscionability of the underlying contract despite this general rule because the parties so stipulated. (<i>Ibid.</i>) As Defendant points out, there is no such stipulation here. But Defendant ignores the conclusion of the footnote in <i>Alberto</i>: “[W]e do not consider how this aspect of the FAA might matter to this case, except to note that, as we discuss above, the restriction on discussing wages [in the underlying contract] is not merely a generally illegal provision, but <i>an illegal provision that directly affects the one-sidedness of the arbitration process.</i>” (<i>Ibid.</i> (emphasis added).) That is, to the extent a separate agreement directly affects the arbitration process, it may be considered despite the FAA’s general rule. Here, the arbitration agreement purports to require the parties to arbitrate all claims they may have against one another. The confidentiality agreement, however, provides that “Any action or proceeding by either Party to enforce this Agreement shall be brought only in any state or federal court located in the state of California, county of Los Angeles.” (Vasquez Decl., Ex. 1, § 12.) “Lack of mutuality exists when an arbitration agreement directs a wide range of claims that would typically be brought by an <i>employee</i> into arbitration, but specifically excludes from arbitration claims that would typically be brought by an <i>employer</i>, including claims related to intellectual property rights and those for equitable relief related to unfair competition or the disclosure of trade secrets or confidential information.” (<i>Gurganus v. IGS Solutions LLC</i> (2025) 115 Cal.App.5th 327, 336.) In <i>Gurganus</i>, it was unconscionably non-mutual to subject the employee’s most likely claims to arbitration while simultaneously, via a separate confidentiality agreement, sending the employer’s intellectual property claims to court. (See <i>id.</i> at p. 337.) And similar to <i>Gurganus</i>, the lack of mutuality here is heightened by the standard for provisional remedies under the confidentiality agreement. For claims subject to arbitration, the parties may seek provisional relief from a court under CCP § 1281.8. (Agreement at p. 1.) But for claims arising from the confidentiality agreement, Defendant may seek provisional relief from a court “without the necessity of showing any actual damages or that monetary damages would not afford an adequate remedy, and without the necessity of posting any bond or other security.” (Vasquez Decl., Ex. 1, at § 8.) This is unconscionably non-mutual because Plaintiff must satisfy the traditional factors for provisional relief on claims he is most likely to bring, but Defendant may obtain such relief without proving all necessary factors. (<i>Gurganus, supra</i>, 115 Cal.App.5th at p. 338; <i>see also Cluck v. GEO Secure Services, LLC</i> (Aug. 3, 2026) 2026 WL 2224706.) 5. <u>Remaining Arguments About Confidentiality Agreement</u> Plaintiff’s remaining arguments about the confidentiality agreement are about the unconscionability of the confidentiality agreement itself, not how the confidentiality agreement makes the arbitration agreement unconscionable. As a result, these arguments are not properly before the Court. (See <i>Alberto, supra</i>,
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	91 Cal.App.5th at p. 494, fn. 4.) III. <u>Severance</u> The arbitration agreement contains a severability clause. Defendant urges the Court to simply sever any unconscionable terms. The Court declines to do so. While a severability analysis is not a mere counting exercise, there are enough unconscionable provisions of the arbitration agreement (when read together with the confidentiality agreement) to conclude that the arbitration agreement is permeated with unconscionability. Severing the offending terms and enforcing the arbitration agreement would “create an incentive for an employer to draft a one-sided arbitration agreement in the hope employees would not challenge the unlawful provisions, but if they do, the court would simply modify the agreement to include the bilateral terms the employer should have included in the first place.” (<i>Ramirez v. Charter Communications, Inc.</i> (2025) 108 Cal.App.5th 1297, 1303-1304.) Rather than sever the offending terms, the Court declines to enforce the arbitration agreement.
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